

Smt. Aarti Dhomoniya W/O Deepak Goyar ... vs Deepak Goyar S/O Shri Premprakash Goyar ... on 20 March, 2023

Author: Sameer Jain

Bench: Sameer Jain

[2023/RJJP/004447]

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 29/2021

Smt. Aarti Dhomoniya W/o Deepak Goyar D/o Jagdish
Dhomoniya, Aged About 31 Years, R/o 117, Satguru Colony Ajay
Nagar Ajmer (Raj)

----Petitioner

Versus

Deepak Goyar S/o Shri Premprakash Goyar, Aged About 33
Years, R/o 12/380 Maalviya Nagar, Jaipur.

----Respondent

For Petitioner(s) : None
For Respondent(s) : None

HON'BLE MR. JUSTICE SAMEER JAIN

Order

20/03/2023

1. None present on behalf of the parties. The matter

pertains to a matrimonial dispute and the law mandates that such cases should be disposed in a time bound manner.

2. No one is appearing on behalf of the parties on account of the ongoing lawyers strike. However, as per the judgment of Apex Court in Harish Uppal Vs. Union of India (UOI) and Ors. reported in (2003) 2 SCC 45, this court is constrained to take up the matter for final disposal as per the pleadings, as the service in the matter is complete.

3. This transfer application has been filed by the applicant-wife under Section 24 of the Code of Civil Procedure seeking transfer of Case No. 374/2020 titled as Deepak Goyar Vs. Aarti Dhamoniya filed by the non-applicant-husband under Section [2023/RJJP/004447] (2 of 3) [CTA-29/2021] 13 of the

Hindu Marriage Act, 1955 with Section 7 Family Court Act 1984 from Family Court No. 2, Jaipur to Family Court Ajmer.

4. Considering that the applicant is presently residing with her aged parents in Ajmer; that the applicant does not have the infrastructural support, in terms of family members, who can accompany her to court proceedings pending in District Jaipur; that multiple proceedings arising out of the marriage are pending adjudication in Ajmer, including a case under Section(s) 498A and 406 of IPC; that the applicant-wife is financially deprived with no independent source of income; that the applicant apprehends threat to her life and liberty at Jaipur; considering the provisions of Section 19 of the Hindu Marriage Act and relying upon the judgments of the Apex Court in N.C.V. Aishwarya vs. A.S. Saravana Karthik Sha: Civil Appeal No. 4894/2022, Sumita Singh Vs. Kumar Sanjay & Ors.: AIR 2002 SC 396, Rajni Kishor Pardeshi Vs. Kishor Babulal Pardeshi: (2005) 12 SCC 237, and Vaishali Shridhar Jagtap Vs. Shridhar Vishwanath Jagtap: AIR 2016 SC 3584, this Court deems it just and proper to transfer the Case No. 374/2020 from Family Court No. 2, Jaipur to Family Court Ajmer.

5. Accordingly, the present transfer application is allowed. The Case No. 374/2020 be transferred from Family Court No. 2, Jaipur to Family Court, Ajmer.

6. Both parties are directed to appear before the transferee court on 21.04.2023. By that time, the record of the case be transmitted to the transferee Court by the Court concerned. It is made clear that if any of the parties would not [2023/RJJP/004447] (3 of 3) [CTA-29/2021] appear on the date fixed by this Court, the transferee court would be at liberty to proceed in accordance with law.

7. It is expected that the transferee court shall dispose of the matter as expeditiously as possible; preferably within the prescribed time period as stipulated in the Act.

8. Stay application and other pending applications, if any, stand disposed of.

9. Registrar (Judicial) is directed to supply a copy of this order to the concerned Court (Family Court No. 2, Jaipur), forthwith, for necessary compliance.

(SAMEER JAIN),J Pooja /2 Powered by TCPDF (www.tcpdf.org)